

THE BURNING
TAJ MAHAL
HOTEL AND
HEADLEY (BELOW)



DELHI | The Road to Access

The Ministry of Home Affairs (MHA) is abuzz with hectic activity ever since David Coleman Headley pleaded guilty to plotting the 26/11 attacks, among other charges, in a US court. Home Minister P. Chidambaram wasted no time in asking the National Investigation Agency (NIA) to prepare the documents needed for the judicial proceedings to make Headley testify. The MHA has even put together a team headed by NIA chief S.C. Sinha and including MHA and Intelligence Bureau officials to fly to the US to interrogate Headley. But his "confession" in the US court and a plea bargain may only add up to a moral victory for India since the NIA team may not get physical access to Headley. And the team will not leave India without such an assurance from the US this time. The plea bargain agreement has allowed Headley considerable leeway from the US authorities. He has only agreed to "fully and willfully participate in any debriefings for the purpose of gathering intelligence or national security information". The agreement also adds: "When directed by the US Attorney's Office, he will fully and truthfully testify in any foreign judicial proceedings held in the US by way of deposition, video conferencing or letters rogatory." With access to Headley still in doubt, the home minister is hoping that, if nothing else, the episode will spur Pakistan to take action against the 26/11 conspirators and bring them to task.

by Bhavna Vij-Aurora

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years ago was the first time that Headley was arrested in the US for smuggling heroin. He managed to get his 10-year jail term reduced to two.